

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT N16

HON. Donald F. Gaffney

Counsel and Parties Please Note:
Law and Motion in Department N16 is heard
on Wednesdays at 9:00 a.m.

Date: August 12, 2026

Tentative Rulings will be posted on the Internet on the day before the hearing by 5:00 p.m. [or earlier] whenever possible. To submit on the tentative ruling, please contact the clerk at (657) 622-5616, after contacting opposing party/counsel. Prevailing party shall give notice of the Ruling and prepare the Order/Judgment for the Court's signature if required.

NOTE: After posting of tentative rulings, the Court will not take the motion off calendar and will grant a continuance of the motion only upon stipulation of all affected parties.

If no appearances are made on the calendared motion date, then oral argument will be deemed to have been waived and the tentative ruling will become the Court's final ruling.

#	Case Name	Tentative
1	Carrillo vs. Nissan North America, Inc.	OFF CALENDAR
2	Acuahuitl vs. Nissan North America, Inc.	TENTATIVE RULING: <u>Demurrer</u> Defendant Santander Consumer USA, Inc. (Doe 1) demurs to the purported first amended complaint of Plaintiff Norberto Coyomani Acuahuitl. The hearing on this demurrer is hereby TAKEN OFF CALENDAR. Defendant Santander (Doe 1) purports to demur to the first amended complaint of Plaintiff Acuahuitl. The court record shows the operative complaint to be the original complaint filed by Plaintiff on 11/21/2024. (ROA # 2.) Plaintiff filed no first amended complaint, and the time to amend the complaint as a matter of right has passed. (See Code Civ. Proc., §§ 472, 473.) On or before 08/26/2026, Defendant Santander (Doe 1) shall file a responsive pleading to the operative complaint.

		Moving Defendant to give notice.
3	Curry vs. Kindred Hospital Westminster	TENTATIVE RULING: The Demurrer to the First Amended Complaint by Defendants Knight Health Holdings, LLC (incorrectly named as Knight Health Holdings, LLC, d/b/a SCIONHEALTH) and Kindred Hospitals West, L.L.C. (incorrectly named as Kindred Hospitals West, L.L.C., d/b/a Kindred Hospital Westminster) is SUSTAINED as set forth below. <u>1st Through 5th, 7th and 9th Causes of Action</u> Plaintiff concedes the 1st through 5th, 7th and 9th causes of action are barred by the statutes of limitations as pleaded. Thus, the demurrer to these causes of action is SUSTAINED. <u>6th, 10th and 11th Causes of Action</u> Plaintiff contends he will remove the 6th, 10th and 11th causes of action as independent counts and place any supported statutory-standard, agency, employment, authorization, or ratification facts within a viable substantive claim. Thus, he concedes that the demurrer should be sustained as to the 6th, 10th and 11th causes of action. Accordingly, the demurrer is SUSTAINED as to these causes of action. <u>12th Cause of Action</u> Plaintiff concedes the 12th cause of action should be sustained without leave to amend. Accordingly, the demurrer to this cause of action is SUSTAINED, without leave to amend. <u>8th Cause of Action</u> What remains is the 8th cause of action. With regards to the 8th cause of action for Disability discrimination (ADA & Rehabilitation Act § 504), Defendants contend the cause of action is devoid of factual allegations sufficient to support an ADA claim as Plaintiff fails to identify his disability and how Defendants discriminated against him. Defendants also contend the claim is barred by the statute of limitations. “To prevail on a discrimination claim under Title III [of the ADA], a plaintiff must show that (1) he is disabled within the meaning of the

		ADA; (2) the defendant is a private entity that owns, leases, or operates a place of public accommodation; and (3) the plaintiff was denied public accommodations by the defendant because of his disability," (<i>Arizona ex rel. Goddard v. Harkins Amusement Enterprises, Inc.</i> (9th Cir. 2010) 603 F.3d 666, 670.) Defendants are correct that the FAC fails to adequately plead facts sufficient to state a claim under the ADA as it fails to include facts to show Plaintiff is disabled within the meaning of the ADA and that he was denied public accommodations by Defendants because of that disability. The court need not at this time address the statute of limitations for claims under Section 504 of the Rehabilitation Act because Plaintiff appears to concede that this cause of action is not properly pleaded and indicates that the "focused amended will proceed primarily under section 504." (See, Opp pg. 8:18-19.) Thus, it appears that Plaintiff concedes this cause of action needs amending. Accordingly, the Court SUSTAINS the demurrer to the 8th cause of action. Based upon the foregoing, the Demurrer to the 1st through 11th causes of action is SUSTAINED. Further, as this is the first pleading challenge, leave to amend is GRANTED as to these causes of action. Plaintiff is GRANTED 30 days leave to amend. Leave to amend also includes leave to correct proper party identification and add one additional cause of action under Health and Safety Code section 1278.5. This Court makes no findings on the legal sufficiency of such amendments at this time. Any amended Complaint must be filed within 30-days service of notice of ruling. Moving Parties to give notice.
4	Meshhal vs. Khan	TENTATIVE RULING: Defendant Mohammad Khan, M.D.'s motion to strike Plaintiff Sofyan Mohamed Meshhal's Complaint is CONTINUED to October 21, 2026, at 9:00 a.m.in this department. Code Civ. Proc. § 435.5, subd. (a) requires the following: Before filing a motion to strike pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if

		an agreement can be reached that resolves the objections to be raised in the motion to strike. ... (2) The parties shall meet and confer at least 5 days before the date a motion to strike must be filed. If the parties are unable to meet and confer at least 5 days before the date the motion to strike must be filed, the moving party shall be granted an automatic 30-day extension of time within which to file a motion to strike, by filing and serving, on or before the date a motion to strike must be filed, a declaration stating under penalty of perjury that a good faith attempt to meet and confer was made and explaining the reasons why the parties could not meet and confer. ... (3) The moving party shall file and serve with the motion to strike a declaration stating either of the following: (A) The means by which the moving party met and conferred with the party who filed the pleading subject to the motion to strike, and that the parties did not reach an agreement resolving the objections raised by the motion to strike. (B) That the party who filed the pleading subject to the motion to strike failed to respond to the meet and confer request of the moving party or otherwise failed to meet and confer in good faith. Defendant did not file a meet and confer declaration, and made no mention of a meet and confer. Accordingly, the motion is continued so that Defendant may meet and confer and file a declaration in compliance with Code Civ. Proc. § 435.5. Defendant Mohammad Khan, M.D. shall give notice.
5	Nguyen vs. TD Bank	TENTATIVE RULING: Defendant Mountain America Credit Union's (MACU) demurrer to Plaintiff Kimberly Nguyen's First Amended Complaint is SUSTAINED. <u>Statement of Law</u> A demurrer only tests the sufficiency of the pleadings. (<i>See Satyadi v. West Contra Costa Healthcare District</i> (2014) 232 Cal.App.4th 1022, 1028 [in analyzing a demurrer, the court looks only to the face of the pleadings and to matters judicially noticeable and not to the evidence or other extrinsic matters]).

In reviewing the propriety of the sustaining of a demurrer, the “court gives the complaint a reasonable interpretation, and treats the demurrer as admitting all material facts properly pleaded. [Citations.] The court does not, however, assume the truth of contentions, deductions or conclusions of law. [Citation.] The judgment must be affirmed ‘if any one of the several grounds of demurrer is well taken. [Citations.]’ [Citation.] However, it is error for a trial court to sustain a demurrer when the plaintiff has stated a cause of action under any possible legal theory. [Citation.] And it is an abuse of discretion to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment.” (*Hale v. Sharp Healthcare* (2010) 183 Cal.App.4th 1373, 1379 [citing *Aubry v. Tri–City Hospital Dist.* (1992) 2 Cal.4th 962, 967]).

A court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718 fn.7.)

First Amended Complaint (FAC)

Plaintiff filed her FAC on 5/7/26 on form PLD-C-001. Under Paragraph 8 of the FAC, Plaintiff does not check off the box for breach of contract, but rather checks the box for “other” causes of action and alleges the following: “Only authorized registered accounts/customers, banks are agents for receiving money on behalf of these customers CA Fin Code § 105.2.” She also alleges the following under Paragraph 9: “Banks violated CA Com § 11105 rule for fund transfer to authorized accounts, customers regulating how banks process payment orders on behalf of their clients, due to no authorized account/customer on bank system, banks are not authorized.”

Plaintiff attaches a declaration in support of the FAC wherein she declares the following: “I called these banks for the information of the accounts that money wired to. They all said those accounts did not exist in their systems. So the banks created the accounts and deleted without the trace. But the money I sent to these banks were kept by them without return. By USA business law, the record of all customers must be kept for 7 years. My case in court reported last year Feb 01 2024 as scam happened to me and I reported in end of Feb 2024. Now I got the final judgement to follow the debtor. I called the bank where the debtor registered the account to get my money. The agent/bank agents said there is no such account numbers

that I had on my records of bank transactions of Well [sic] Fargo to their banks.”

Plaintiff alleges that Defendants violated Fin. Code § 105.2 and Comm. Code § 11105 because they failed to return the money that Plaintiff sent via wire transfer.

Defendant MACU contends that neither of these statutes allow for a private right of action, and Plaintiff failed to allege any contractual relationship between her and Defendant MACU.

First, with regards to Plaintiff’s claim for violation of Financial Code § 102.5, Defendant MACU correctly notes that Financial Code § 105.2 has been repealed; however, Financial Code § 105 provides the following: “Banks are divided into the following classes:

(a) Commercial banks. (b) Industrial banks. (c) Trust companies.”

Fin. Code § 109 provides: “‘Commercial banking business’ includes, but is not limited to, the business of soliciting, receiving, or accepting of money or its equivalent on deposit as a regular business whether the deposit is made subject to check or is evidenced by a certificate of deposit”

Comm. Code § 11105 provides:

(a) In this division:

(1) “Authorized account” means a deposit account of a customer in a bank designated by the customer as a source of payment of payment orders issued by the customer to the bank. If a customer does not so designate an account, any account of the customer is an authorized account if payment of a payment order from that account is not inconsistent with a restriction on the use of that account.

(2) “Bank” means a person engaged in the business of banking and includes a savings bank, savings and loan association, credit union, and trust company. A branch or separate office of a bank is a separate bank for purposes of this division.

(3) “Customer” means a person, including a bank, having an account with a bank or from whom a bank has agreed to receive payment orders.

(4) “Funds-transfer business day” of a receiving bank means the part of a day during which the receiving bank is open for the receipt, processing, and transmittal of payment orders and cancellations and amendments of payment orders.

(5) “Funds-transfer system” means a wire transfer network, automated clearinghouse, or other communication system of a clearinghouse or other association of banks through which a payment order by a bank may be transmitted to the bank to which the order is addressed.

...

Defendant MACU cites to *Lu v. Hawaiian Gardens Casino, Inc.* (2010) 50 Cal.4th 592 in support of the argument that both these code sections provide definitions only and no basis for liability. As the court held in *Lu*, “when neither the language nor the history of a statute indicates an intent to create a new private right to sue, a party contending for judicial recognition of such a right bears a heavy, perhaps insurmountable, burden of persuasion.” (*Id.* at 601 [citing *Crusader Ins. Co. v. Scottsdale Ins. Co.* (1997) 54 Cal.App.4th 121, 133]).

Defendant MACU contends that because Fin. Code § 105.2 was a definitional provision, and not a substantive regulatory command, it would have contained no language creating a private right of action, no reference to a remedy, and no indication that the Legislature intended private enforcement. Similarly, Defendant MACU contends that Comm. Code § 11105 defines several foundational terms used throughout Division 11, but does not establish duties or create any cause of action, remedies, or specify who may bring a claim, and is purely definitional.

Plaintiff failed to establish how Defendant MACU could have violated either of these statutes to give rise to a cause of action.

In her FAC, Plaintiff alleges/declares that these claims are based on the allegation that “the banks created the accounts and deleted without the trace. But the money I sent to these banks were kept by them without return.” However, Plaintiff also alleges/declares that she received a judgment against the “debtor”, and called the bank where the debtor registered the account to get her money. These allegations are unclear, at best. On the one hand, Plaintiff is alleging that the banks kept her money and that the accounts do not exist, but on the other hand, Plaintiff is alleging that she obtained a judgment against a debtor because of these wire transfers, and is attempting to collect this judgment by going through the debtor’s banks. Neither Comm. Code § 11105, nor Fin. Code §§ 105.2 or 109, provides Plaintiff with a basis to do that.

In Plaintiff’s Opposition, Plaintiff adds further allegations to supplement her declaration in her FAC, providing the names on the

		accounts, account numbers/transfer numbers and the amount transferred to each bank. She also contends that Comm. Code § 11105 allows fund transfer to process by the bank if a customer is registered on that bank system, and that the bank cannot receive that fund transfer if the bank does not have that person. However, Comm. Code § 11105 does not provide for such duties. Furthermore, Plaintiff also acknowledged in her Opposition, as she did in her FAC, that she received a default judgment relating to these transfers. Her Opposition contains the same discrepancies as her FAC, and she fails to establish how Defendant MACU “violated” either of these code sections that are purely definitional. Accordingly, the demurrer is sustained. Should Plaintiff desire to file an amended complaint that addresses the issues in this ruling, Plaintiff shall file and serve the amended complaint within 30 days of service of the notice of ruling. Defendant Mountain American Credit Union shall give notice
6	Pacheco vs. General Motors LLC	OFF CALENDAR
7	Sanmina Corporation vs. Gemayel	TENTATIVE RULING: Plaintiff/Cross-Defendant Sanmina Corporation’s demurrer to Defendant/Cross-Complainant George Gemayel’s cross-complaint is SUSTAINED. Defendant/Cross-Complainant Gemayel is granted 30 days leave to file an amended cross-complaint. <u>Request for Judicial Notice</u> The court GRANTS Sanmina’s request for judicial notice in support of its demurrer as to nos. 1, 2, 4 and 5, and DENIES the request for no. 3. Sanmina contends that Gemayel incorporates the PSA, Exhibit 1, by reference into his Cross-Complaint at paragraph 8. Sanmina also cites to <i>Marina Tenants Assn. v. Deauville Marina Development Co.</i> (1986) 181 Cal.App.3d 122, where the trial court judicially noticed the entire master lease that was in issue. (<i>Id.</i> at 128, fn. 1). It is true that Gemayel refers to the PSA and the First Amendment in his cross-complaint. (See Cross-Complaint (“CC”), ¶ 10), but he does not allege anything about the “reaffirmation of Indemnity.” The court also GRANTS Sanmina’s request for judicial notice in support of its Reply. (Evid. Code § 452, subd. (d)).

The court GRANTS Gemayel's request for judicial notice. (Evid. Code § 452, subds. (d) and (h)).

Statement of Law

A demurrer only tests the sufficiency of the pleadings. (*See Satyadi v. West Contra Costa Healthcare District* (2014) 232 Cal.App.4th 1022, 1028 [in analyzing a demurrer, the court looks only to the face of the pleadings and to matters judicially noticeable and not to the evidence or other extrinsic matters]).

In reviewing the propriety of the sustaining of a demurrer, the “court gives the complaint a reasonable interpretation, and treats the demurrer as admitting all material facts properly pleaded. [Citations.] The court does not, however, assume the truth of contentions, deductions or conclusions of law. [Citation.] The judgment must be affirmed ‘if any one of the several grounds of demurrer is well taken. [Citations.]’ [Citation.] However, it is error for a trial court to sustain a demurrer when the plaintiff has stated a cause of action under any possible legal theory. [Citation.] And it is an abuse of discretion to sustain a demurrer without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment.” (*Hale v. Sharp Healthcare* (2010) 183 Cal.App.4th 1373, 1379 [citing *Aubry v. Tri–City Hospital Dist.* (1992) 2 Cal.4th 962, 967]). A court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718 fn.7.)

Allegations in Cross-Complaint

Gemayel alleges the following in his cross-complaint:

In June 1998, Gemayel entered into a Purchase and Sale Agreement (“PSA”) with Sanmina pursuant to which Sanmina agreed to sell to Gemayel the real property located at 2215 South Standard Avenue in Santa Ana, California. (CC, ¶ 8). At the time the PSA was executed, Gemayel was led to believe that there was limited contamination at the Subject Property which would cost in the range of \$298,000-\$424,600 to address. Sanmina and Gemayel therefore agreed that the purchase price of the Subject Property would be reduced by \$498,600, making the purchase price \$701,600. That’s the amount Gemayel paid. (CC, ¶ 9).

Sanmina fraudulently concealed the following material facts from Gemayel (collectively, “Concealed Material Facts”) that: a. Elexsys was actually one and the same as Diceon. b. Sanmina had acquired Diceon the year before. c. Diceon was known as a polluter, a fact that Sanmina found out during its acquisition of Elexsys/Diceon. d. Diceon had previously been cited by the South Coast Air Quality Management District (SCAQMD) for environmental violations. e. Diceon had contaminated the Subject Property, including with the solvent 1,1,1-TCA (“TCA”). f. The Subject Property was far more contaminated than what was disclosed by Sanmina and groundwater beneath the property was part of a co-mingled plume generally migrating to the southeast beneath the Subject Property. g. Although the parties agreed to discount the Subject Property’s purchase price, the amount was greatly disproportionate to what it would actually cost in environmental response actions at the Subject Property. h. Sanmina was a “responsible party” under various federal and California environmental laws for causing and contributing to disposals and releases of hazardous substances at the Subject Site which impacted soil and groundwater. (CC, ¶ 12).

In 2008, the Orange County Water District (“OCWD”) filed a lawsuit against Sanmina and others styled Orange County Water District v. Sabic Innovative Plastics US, LLC, OCSC Case No. 30-2008-00078246 (“Sabic” case). In 2023, OCWD filed a second action, styled Orange County Water District v. Sabic Innovative Plastics US, LLC, OCSC Case No. 30-2023-01363985 (“Sanmina” case). Both cases sought cost recovery and damages related to an alleged co-mingled groundwater plume in the South Basin of Orange County. (CC, ¶ 14).

In April 2023 the Court issued a 131-page Statement of Decision (“SOD”) finding, among other things, that Sanmina was liable to OCWD for \$119,135 under California’s Hazardous Substance Account Act (“HSAA”) and liable for over \$1.1 million under the Orange County Water District Act (“OCWD Act”). While no attorneys’ fees are available under the HSAA, liability under the OCWD Act subjected Sanmina to millions of dollars in OCWD attorneys’ fees. (CC, ¶ 16).

Sanmina had knowledge and access to the Concealed Material Facts including that Sanmina caused and contributed to TCA disposals and releases into the subsurface and groundwater at and around the Subject Property. Each such fact was not known or reasonably discoverable by Gemayel, and thus Sanmina owed Gemayel a duty to disclose each fact. Sanmina intended to deceive Gemayel by hiding the Concealed Material Facts. (CC, ¶ 23).

Sanmina represented it had not caused or contributed to various solvent releases in the subsurface or groundwater at the Subject Property, including by TCA. (CC, ¶ 29).

The contaminants (including TCA) Sanmina and Roes 1 through 20 disposed of, released, and/or threatened to release at the Subject Property are “hazardous substances” within the meaning of, inter alia, Health & Safety Code section 68075; 42 U.S.C. § 9602(a); and 40 C.F.R. §§ 302.4(a) and 401.15. (CC, ¶ 39).

During the early period when Gemayel thought the PSA indemnity obligations were legitimate and his to bear, Gemayel performed his obligations under the PSA and in fact paid attorneys’ fees to defend Sanmina – well prior to discovering Sanmina had breached the PSA, including the implied covenant of good faith and fair dealing through concealment and/or the Representations as detailed above. Sanmina further breached its obligations under the PSA as to indemnity during that period by refusing to accept Gemayel’s selection of defense counsel. (CC, ¶¶ 46, 47).

Statute of Limitations

First, Sanmina contends that all causes of action are barred by the statute of limitations. Code Civ. Proc. § 338, subd. (d), provides for a three-year statute of limitations for fraud; § 337, subd. (a) provides for a four-year statute of limitations for breach of contract; and § 338, subd. (b) provides for a three-year statute of limitation for the HSAA claim.

A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. (*Boy Scouts of America Nat. Foundation v. Superior Court* (2012) 206 Cal.App.4th 428, 438.) “In order for the bar to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint.” (*Id.* at 438-439.)

“Under the discovery rule, the statute of limitations begins to run when the plaintiff suspects or should suspect that her injury was caused by wrongdoing, that someone has done something wrong to her.” (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1110).

“In order to rely on the discovery rule for delayed accrual of a cause of action, a plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery

and (2) the inability to have made earlier discovery despite reasonable diligence. . . . [C]onclusory allegations will not withstand demurrer.” (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808.) Likewise, “[w]hen a plaintiff relies on a theory of fraudulent concealment, delayed accrual, equitable tolling, or estoppel to save a cause of action that otherwise appears on its face to be time-barred, he or she must specifically plead facts which, if proved, would support the theory.” (*Mills v. Forestex Co.* (2003) 108 Cal.App.4th 625, 641.)

Once properly pleaded, belated discovery is a question of fact and becomes a matter of law only when “reasonable minds can draw only one conclusion from the evidence.” (*E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 Cal.App.4th 1308, 1320.)

Finally, under the discovery rule, “[o]nce the plaintiff has a suspicion of wrongdoing, and therefore an incentive to sue, she must decide whether to file suit or sit on her rights. So long as a suspicion exists, it is clear that the plaintiff must go find the facts; she cannot wait for the facts to find her.” (*Jolly, supra*, 44 Cal.3d at 1111).

Fraud Claims

Sanmina contends that Gemayel’s fraud claims arise out of acts and events that occurred before he purchased the Property in 1998. Sanmina’s request for judicial notice (as well as Gemayel’s allegations in his cross-complaint) provide that in 2008, the Orange County Water District filed the action styled *Orange County Water District v. Sabic Innovative Plastics US, LLC, et al*, sued several defendants, including Sanmina, for claims arising out of contamination allegedly emanating from the subject property and several surrounding properties. The *Sabic* complaint alleges that “Sanmina-Sci Corporation, individually and successor in interest to Diceon Electronics, Inc. . . .manufactured circuit boards on at least one site in the relevant litigation area, a process that involves the use of chemicals containing VOC’s. Sanmina released hazardous wastes containing VOC’s.” (See RJN, Ex. 4 [*Sabic* Complaint] at ¶ 13).

Sanmina attaches as Exhibit 5 to the request for judicial notice a declaration filed by Gemayel in the action *Sanmina-SCI Corporation v. Gemayel*, which is dated May 20, 2011, wherein Gemayel declares that Sanmina was sued by OCWD in the *Sabic* case, and that Sanmina demanded that Gemayel honor the obligation under the indemnification clause of the PSA. (RJN, Ex. 5 [Declaration], at ¶¶ 3-5).

Sanmina also cites to the court of appeal’s published decision in *OCWD v. Sabic Innovative Plastics US LLC* (2017) 14 Cal.App.5th 343, wherein the appellate court held:

The evidence showed that Sanmina used a VOC solvent, 1,1,1–TCA, in its manufacturing process and that the same solvent was found in the environment at the site. A trier of fact could reasonably infer that Sanmina used substantial quantities of 1,1,1–TCA in at least one degreaser at the site. Based on expert testimony that degreasers are common sources of contamination, as well as the fact that 1,1,1–TCA contamination actually occurred at the site, a trier of fact could reasonably conclude that Sanmina (or some other party) disposed of 1,1,1–TCA during Sanmina's occupancy of the site. Based on the current record, a triable issue of fact exists as to this element, and summary adjudication should not have been granted.

(*Id.* at 381–382) (citation omitted).

Accordingly, Sanmina asserts that Gemayel was on notice of the potential fraud claim as early as 2008 (and by the appellate court’s decision in 2017, which found Sanmina liable for the very pollutant [TCA] that serves the basis for Gemayel’s current claims).

In his Opposition, Gemayel argues that he has no reason to know that Elecsys and Diceon were “one in the same” as Sanmina, that Gemayel was not put on inquiry at any time before April 2023, had no reason to know about the 2017 Fourth District Court of Appeal opinion, and, finally, that the parties had entered into a tolling agreement which tolls Gemayel’s claims against Sanmina until the conclusion of the *Sabic* action.

With regards to Gemayel’s discovery argument, however, the limitations period begins once Gemayel “has notice or information of circumstances to put a reasonable person *on inquiry*. . .” (*Bergstein v. Stroock & Stroock & Lavan LLP* (2015) 236 Cal.App.4th 793, 818 [citing *Jolly supra*, 44 Cal.3d at 1110-1111, emphasis in original]).

Gemayel’s concealment cause of action and fraudulent misrepresentation cause of action are based on Sanmina’s concealment that “caused and contributed to TCA disposals and releases into the subsurface and groundwater at and around the Subject Property”, and that it “represented it had not caused or contributed to various solvent releases in the subsurface or

groundwater at the Subject Property, including by TCA.” (CC, ¶¶ 23, 29).

Gemayel was put on inquiry once he was made aware of the *Sabic* action, which specifically alleged that Sanmina was Diceon’s successor and was alleged to be liable for pollutants. Gemayel admitted knowledge of this complaint in his 2011 declaration that he filed in the prior *Sanmina v. Gemayel* action. “Subjective suspicion is not required. If a person becomes aware of facts which would make a reasonably prudent person suspicious, he or she has a duty to investigate further and is charged with knowledge of matter which would have been revealed by such an investigation.” (*McCoy v. Gustafson* (2009) 180 Cal.App.4th 56, 108). The appellate court decision in *OCWD v. Sabic Innovative Plastics US LLC* (2017) 14 Cal.App.5th 343 also demonstrated that OCWD was asserting that Sanmina is liable for TCA pollutants. (*See id.* at 381).

Finally, Gemayel contends that Gemayel and Sanmina entered into a tolling agreement, which he attaches as Exhibit 1 to his request for judicial notice. However, Gemayel did not allege that his claims were tolled in his cross-complaint.

Furthermore, the tolling agreement applies to “any claim asserted in any pleadings filed in the Sanmina Matter to the extent the defense had not expired prior to the filing of the Sanmina Matter.” (Gemayel RJN, Ex. 1 [tolling agreement] at ¶ 7.). Gemayel does not establish that his claims in the cross-complaint were the claims that were tolled in the prior *Sanmina* case. In support of its Reply, Sanmina requests judicial notice of Gemayel’s first amended cross-complaint, which provides that Gemayel asserted only one cause of action for violation of Bus. & Prof. Code § 17200 et seq., based on Sanmina’s alleged refusal of counsel provided by Gemayel. (CC, ¶ 21).

Accordingly, the court finds that the first two causes of action for fraud are time-barred.

Breach of Contract

With regards to the fourth cause of action for breach of contract, Gemayel alleges that Sanmina breached the PSA because of the concealment discussed above, and also because Sanmina breached its obligations under the PSA as to indemnity during that period by refusing to accept Gemayel’s selection of defense counsel. As discussed above, the first basis for concealment is time barred.

With regards to the second basis (refusing Gemayel’s selection of defense counsel), Gemayel’s 2011 declaration in the prior *Sanmina* action, which is attached as Exhibit 4 to Sanmina’s RJN, provides that Sanmina’s rejection of Gemayel’s defense counsel occurred in 2010-2011. (RJN, Ex. 4, at ¶¶ 16, 17). Accordingly, this cause of action is also time-barred, and as with the fraud claims, Gemayel failed to establish that this claim is subject to the tolling agreement.

HSAA

With regards to the third cause of action for HSAA violation, Gemayel alleges that the contaminants (including TCA) Sanmina disposed of, released, and/or threatened to release at the Subject Property are “hazardous substances” within the meaning of, inter alia, Health & Safety Code section 68075; 42 U.S.C. § 9602(a); and 40 C.F.R. §§ 302.4(a) and 401.15. (CC, ¶ 39).

The HSAA provides, in relevant part: “[a] person who has incurred response or corrective action costs in accordance with this chapter, Chapter 6.5 (commencing with Section 25100), or the federal act may seek contribution or indemnity from any person who is liable pursuant to this chapter.” (Health & Safety Code § 25363, subd. (d); see also *Orange County Water Dist. v. Alcoa Global Fasteners, Inc.* (2017) 12 Cal.App.5th 252, 297). When a plaintiff proves the elements of an HSAA violation, an HSAA defendant is strictly liable for recoverable costs (Health & Saf. Code, § 25363, subd. (c)) unless the defendant establishes an applicable defense. (*Id.* at 298).

Addressing the statute of limitations argument first, the court in *Otay Land Co., LLC v. U.E. Limited, L.P.* (2017) 15 Cal.App.5th 806, held: “Here, the court determined the three-year statute of limitations under Code of Civil Procedure section 338, subdivision (b), for ‘action[s] for trespass upon or injury to real property’ applied to Plaintiffs’ HSAA claim. Plaintiffs do not challenge this aspect of the court’s ruling, and we do not address it. The court then found the statutory period ‘commenced when [Plaintiffs] knew or should have known of the facts giving rise to the claim...Plaintiffs contend their claim did not accrue until they paid remedial action costs. We agree.” (*Id.* at 851). In his Cross-Complaint, Gemayel alleges that his costs “are ongoing.” Accordingly, this cause of action does not appear to be time-barred.

Next, Sanmina argues that the purchase and sale agreement (PSA) entered into by the parties unambiguously allocates all environmental liability to Gemayel. Paragraph 9 of the PSA contains the following release language:

Except with respect to any claims arising out of any breach of covenants, representations or warranties set forth in Section 12 hereof, Buyer, for itself and its agents, affiliates, successors and assigns, hereby releases and forever discharges Seller, its agents, affiliates, successors and assigns from any and all rights, claims and demands at law or in equity, whether known or unknown at the time of this Agreement, which Buyer has or may have in the future, arising out of the physical, environmental, economic or legal condition of the Property. In giving this release, Buyer expressly waives the benefit of any statutory provision or decisional law, if any, that would preclude the extension of this release to claims which Buyer did not know or suspect to exist at the time of execution of this Agreement, which, if known by Buyer, may have materially affected the giving of this release including the provisions of California Civil Code Section 1542 which provide:

"Section 1542. (General Release - Claims Extinguished.) A general release does not extend to claims which the creditor does not know or suspect to exist in this favor at the time of executing the release, which if known by him must have materially affected his settlement with the debtor."

Buyer hereby specifically acknowledges that Buyer has carefully reviewed this subsection and discussed its import with legal counsel and that provisions of this subsection are a material part of this Agreement.

(RJN, Ex. 1 [PSA] at ¶ 9).

Paragraph 10 of the PSA provides:

Environmental Disclosure and Indemnity: Buyer acknowledges that Seller will perform environmental testing prior to the Close of Escrow in order to establish a baseline for existing environmental conditions on the Property which information shall be provided to Buyer and that such testing will be performed in accordance with the Scope of Work attached to this Agreement as Exhibit D. Seller agrees that Buyer's consultant shall be notified so that Buyer's consultant can be present and can take split samples of any samples taken by Seller's consultant. Seller also agrees that Buyer's Consultant may direct Seller's Consultant to complete some pre-identified limited tests at Buyer's cost during the escrow

period. Notwithstanding the results of such testing, or Buyer's review of the Environmental Reports, Buyer shall indemnify, defend with counsel reasonably acceptable to Seller, protect, and hold harmless Seller, its employees, agents, contractors, stockholders, officers, directors, successors, subsidiaries, personal representatives, and assigns from and against all claims, actions, suits, proceedings, judgments, losses, costs, personal injuries, damages, liabilities, deficiencies, fines, penalties, damages, attorneys' fees, consultants' fees, investigations, detoxifications, remediations, removals, and expenses of every type and nature, directly or indirectly arising out of or in connection with Contamination present at any time on or about the Property regardless of the source of such Contamination. This indemnity shall survive the close of escrow. At the closing of the transaction contemplated herein, upon the request of Seller, Buyer shall deliver to Seller a certificate and indemnity of Buyer reaffirming the provisions of Sections 9 and 10 hereof which shall survive the close of escrow hereunder. Buyer acknowledges that the purchase price for the Property set forth in this Agreement represents a discount based on Buyer's and Buyer's environmental consultant's assessment of the risks and liabilities posed by the Contamination on the Property. This indemnity is being given by Buyer in consideration of that discount regardless of whether such discount is an accurate reflection of the actual risks and liabilities arising out of or relating to such Contamination.

Gemayel argues that the release is void as against public policy because it releases Sanmina from liability for willful injury to the person or property of another. Gemayel cites to Civ. Code § 1668, which provides: “All contracts which have for their object, directly or indirectly, to exempt any one from responsibility for his own fraud, or willful injury to the person or property of another, or violation of law, whether willful or negligent, are against the policy of the law.”

However, in *SI 59 LLC v. Variel Warner Ventures, LLC* (2018) 29 Cal. App. 5th 146, the court of appeal held: “[W]e hold that section 1668 negates a contractual clause exempting a party from responsibility for fraud or a statutory violation only when all or some of the elements of the tort are concurrent or future events at the time the contract is signed. Contrariwise, we hold that section 1668 does not negate such a clause when all the elements are past events. Regarding the element of damages, which is necessary for tort liability, this means that at least some form of economic or physical damage has occurred.” (*Id.* at 1248).

At the time of the purchase and sale of the real property, any contamination by Sanmina (even if it were willful) would not be negated by Civ. Code § 1668.

Next, Gemayel argues that the PSA does not function to indemnify active negligence by Sanmina. “[A]n indemnity agreement may provide for indemnification against an indemnitee's own negligence, but such an agreement must be clear and explicit and is strictly construed against the indemnitee.” (*Rossmoor Sanitation, Inc. v. Pylon, Inc.* (1975) 13 Cal.3d 622, 628). “If an indemnity clause does not address itself to the issue of an indemnitee's negligence, it is referred to as a ‘general’ indemnity clause.” (*Id.* at 628). “While such clauses may be construed to provide indemnity for a loss resulting in part from an indemnitee's Passive negligence, they will not be interpreted to provide indemnity if an indemnitee has been Actively negligent.” (*Id.* at 629). “Active negligence, on the other hand, is found if an indemnitee has personally participated in an affirmative act of negligence, was connected with negligent acts or omissions by knowledge or acquiescence, or has failed to perform a precise duty which the indemnitee had agreed to perform.” (*Id.* at 629).

Setting aside the indemnity portion, however, Gemayel fails to address the release in the PSA. Whether the indemnity provision is enforceable is an issue to be decided on Sanmina’s claims against Gemayel in Sanmina’s complaint, not Gemayel’s claim against Sanmina. Gemayel agreed to release Sanmina for any contamination on the property, regardless of whether the indemnity agreement is enforceable. Gemayel presented no argument suggesting that the release in the PSA is unenforceable.

Accordingly, the court sustains the demurrer to this cause of action.

Declaratory Relief

Finally, Gemayel asserts a fifth cause of action for declaratory relief, alleging as follows: “Gemayel desires a judicial determination of his rights and duties and a declaration that in that Sanmina and Roes 1 through 20 are responsible for the contamination at the Subject Property and are obligated to pay for all past and ongoing Environmental Response Action costs in the amount of at least \$2 million and that because of fraud, concealment, and misrepresentation, any alleged release and/or indemnity by Gemayel in the PSA is void, rescinded, and of no legal effect.” (CC, ¶ 52).

		Because the declaratory relief cause of action is premised on the same theories as the breach of contract, HSAA and fraud causes of action, the court also sustains the demurrer to this cause of action. <u>Leave to Amend</u> Sanmina contends that the demurrer should be sustained without leave to amend, because the defects cannot be cured. However, because this is Gemayel’s first cross-complaint, the court will grant leave to amend. (See <i>Eghtesad v. State Farm General Insurance. Co.</i> (2020) 51 Cal.App.5th 406, 411). Should Defendant/Cross-Complainant George Gemayel desire to file an amended cross-complaint that addresses the issues in this ruling, the amended cross-complaint shall filed and served within 30 days of service of the notice of ruling. Plaintiff/Cross-Defendant Sanmina Corporation shall give notice.
8	Code 4 Media Group, Inc. vs. Kim	OFF CALENDAR
9	Hingorani vs. Dunn	TENTATIVE RULING: <u>Motion to Set Aside Default and Default Judgment</u> Defendant Dane Carson Dunn Jr. moves to set aside the default entered against him. For the following reasons, the unopposed motion is GRANTED. Code Civ. Proc. § 473(b) provides in pertinent part, “The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . . .” A motion seeking relief under Section 473(b) must be brought within 6 months of entry of the judgment. (Civ. Proc. Code § 473(b).)

		Defendant's default was entered on February 17, 2026. (ROA 11.) Defendant timely filed this motion on April 1, 2026. (ROA 28.) Defendant seeks discretionary relief based on his claimed mistake, inadvertence, and excusable neglect. Defendant was evidently served with the summons and complaint by substitute service on a former employee. (Dunn Dec., ¶¶ 3-6.) The former employee placed the Complaint in a desk drawer and never told Defendant anything about it. (Id.) Defendant did not discover the documents until February 9, 2026, when he located them in the drawer. (Id.) On February 10, 2026, Defendant notified his insurance carrier about the Complaint and tendered it to his carrier. Defendant has made a sufficient showing of mistake, inadvertence, or excusable neglect to warrant setting aside the default. Defendant shall file the Answer to the Complaint within 7 days of this ruling. Defendant shall give notice of this ruling.
10	Mills vs. Nexgen Air Conditioning and Heating, LLC	CONTINUED TO 9/2/26
11	Regions Bank vs. USARIUM INC	TENTATIVE RULING: Plaintiff Regions Bank, Successor by Merger to Ascentium Capital, LLC's motion to enforce settlement with Defendants Usarium Inc. and Aleh Manchuliantsau is GRANTED in part, as set forth below. Code Civ. Proc. § 664.6 provides: "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement." On January 1, 2021, Section 664.6 was amended to state that a settlement agreement signed by an attorney who represents the party is considered "signed by the party" and can be enforced under that Section. Code Civ. Proc. § 664.6 "was enacted to provide a summary procedure for specifically enforcing a settlement contract without the need for a

new lawsuit.” (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal. App. 4th 793, 809.) Personal consent to the material terms of the settlement by each of the parties or their counsel is a statutory prerequisite to a 664.6 motion. (*Critzer v. Enos* (2010) 187 Cal. App. 4th 1242, 1257-58.)

“A court ruling on a motion under CCP § 664.6 must determine whether the parties entered into a valid and binding settlement. A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms. The court ruling on a motion may consider the parties’ declarations and other evidence in deciding what terms the parties agreed to, and the court’s factual findings in this regard are reviewed under the substantial evidence standard. If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement. The statute expressly provides for the court to ‘enter judgment pursuant to the terms of the settlement.’” (*Hines v. Lukes* (2008) 167 Cal. App. 4th 1174, 1182 (internal citations omitted).)

As such, the elements that must be met pursuant to Code Civ. Proc. § 664.6 are as follows:

1. There is a valid and binding settlement agreement of all or part of the case;
2. The parties agreed to all material settlement terms;
3. If it is a written stipulation, the writing is signed by all parties or their counsel;
4. The settlement agreement was made pending litigation;
5. A Motion to Enforce is made.

Here, the court finds that Plaintiff has offered sufficient admissible evidence to establish a valid and binding settlement agreement and/or stipulated judgment exists between the parties. (See Declaration Mary Peloquin, ¶3 & Ex. A). The settlement contains the signatures of both Defendants (Id., Ex. A at p. 8). Defendants have not filed an opposition to challenge the validity of the settlement agreement.

As such, the court finds that Plaintiff has established that a valid and binding settlement agreement exists, that the parties, by their signatures, agreed to all material terms, that the settlement agreement is memorialized in writing and is signed by all parties, that the settlement agreement was made pending this litigation, and that Plaintiff has made a motion to enforce the settlement. The stipulated judgment agreed that this court would retain jurisdiction under Code of Civil Procedure § 664.6 to enter judgment pursuant to the terms of

	the settlement agreement. Each element of \$664.6 has, therefore, been met. Pursuant to the terms of the settlement agreement, the parties agreed that if Defendants failed to comply with the payment plan set forth in the agreement, “Defendants stipulate to entry of judgment against them, jointly and severally, in favor of Plaintiff in the sum of \$57,165.59, plus interest at the contract rate of 18% per annum from September 10, 2024, plus attorneys’ fees and costs after the date of this Stipulation, attorneys fees and costs to file the motion or application to enforce this Stipulation, any order fee required to file the attached proposed order, less credit for payments made in good funds before the time of any default hereunder, and judgment for possession of the Siemens 12” IP65 Control System secured by the Agreement (“Equipment”).” (Id., Ex. A at p. 2, §1). Plaintiff’s counsel has offered a declaration that calculates the sums owed under the stipulated judgment, as follows: • \$57,165.59 Principal sum • -\$ 3,046.27 Payments made • \$18,709.69 Interest from September 10, 2024, at 18% • \$ 912.22 Attorneys’ fees to file the current motion • \$ 60.00 Costs The court find that this evidence is sufficient to establish that the motion should be granted and judgment entered against Defendants, jointly and severally, pursuant to the terms of the parties’ settlement agreement, attached as Ex. A. There, however, is a discrepancy in the amount of the total judgment that Plaintiff seeks. • On page 4:15 of the motion, Plaintiff states that the total judgment amount is \$73,800.64. • On page 4:20 of the motion, Plaintiff requests that judgment be entered in the total amount of \$71,722.20. • The court, using the numbers stated in p. 4:7-14 of the motion for principal, payments made, interest, attorneys’ fees, and costs, reaches a total amount of \$73,801.23 based on the court’s own calculations. Thus, the court’s tentative is to grant the motion and enter judgment in the amount of \$73,801.23.
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		Plaintiff to give notice and prepare a judgment consistent with this ruling.
12	Schneider-Kidan vs. Estate of Leonard Tierney	TENTATIVE RULING: Plaintiff Tracy Lynn Schneider-Kidan’s motion to reconsider or vacate/set aside the March 18, 2026, order granting Defendant Richard Chipman’s motion to quash service of summons is DENIED without prejudice as to section 473(b) relief only. On March 18, 2026, the court granted Defendant Richard Chipman’s motion to quash service of summons. In doing so, the court found that Plaintiff failed to meet her burden of establishing by admissible competent evidence that the court may exercise general or specific jurisdiction over Defendant Chipman. Plaintiff contends that, at the time of Plaintiff’s opposition to the motion, Plaintiff was self-represented. Further, Plaintiff had filed an omnibus opposition to multiple motions to quash. After the deadline for Plaintiff to file an opposition to the motion, the court entered a minute order on another motion to quash, admonishing Plaintiff to file separate, distinct oppositions to each motion to quash. Plaintiff is now represented by counsel. Plaintiff contends that in the related case, <i>Adam R. Kidan v. Chartwell Staffing Solutions, Inc.</i>, Orange County Superior Court Case No. 30-2021-01186369 (the “Adan Kidan Action”), the issue of the court’s jurisdiction over Defendant Chipman was also adjudicated on appeal. The court of appeal held that in that related case, there was sufficient evidence to establish that Chipman had purposefully availed himself of the benefits of California in connection with the acquisition and operation of Chartwell Staffing Services, Inc. The court of appeal remanded for additional jurisdictional discovery regarding whether Chipman’s California contacts are sufficiently related to this case to establish specific personal jurisdiction. Procedurally, the mechanisms under which Plaintiff seeks relief are both deficient. First, Plaintiff seeks relief under Code of Civil Procedure section 473 for mistake, inadvertence, surprise or excusable neglect. (Code Civ. Proc. § 473(b)). The declaration of Plaintiff Tracy Schneider-Kidan, however, fails to detail any mistake, inadvertence, surprise, or excusable neglect. Plaintiff merely testifies that she recognized that

she could not effectively represent herself, but fails to explain what she believes is the mistake, inadvertence, surprise or excusable neglect for which relief should be granted under section 473(b). Further, Plaintiff failed to include any proposed opposition to the motion to quash. (*Id.*, (“Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted...”). To the extent that Plaintiff is seeking relief on the basis that Plaintiff could have filed a different opposition with more facts, Plaintiff fails to meet the burden under section 473 to do so.

Second, Plaintiff seeks relief under Code of Civil Procedure section 1008. “Section 1008 governs reconsideration of court orders whether initiated by a party or the court itself.” (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1499). “It is the exclusive means for modifying, amending or revoking an order. That limitation is expressly jurisdictional.” (*Id.*) “When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (Cal. Civ. Proc. Code § 1008 (a).)

A court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon “new or different facts, circumstances or law.” (*Gilberd, supra*, at p.1499.) Motions for reconsideration are restricted to circumstances where a party offers the court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (*Id.*)

Here, Plaintiff fails to offer any admissible, competent, new or different facts that were not previously available and Plaintiff offers no valid reason for not offering it earlier. The court of appeal’s opinion, on which Plaintiff bases her motion, was filed on October 29, 2024—long before the court’s March 18, 2026, order granting Chipman’s motion to quash. The court finds that Plaintiff has not met her burden for the court to modify, amend, or revoke its order under section 1008.

		Third, Plaintiff appears to suggest that the court of appeal opinion in a different, related case, is somehow binding in this case, where the record before the court and the parties are different. “Under the doctrine of the law of the case, a principle or rule that a reviewing court states in an opinion and that is necessary to the reviewing court's decision must be applied throughout all later proceedings <i>in the same case</i>, both in the trial court and on a later appeal.” (<i>People v. Iraheta</i> (2017) 14 Cal.App.5th 1228, 1242 (emphasis added)). “Thus the law-of-the-case doctrine “prevents the parties from seeking appellate reconsideration of an already decided issue <i>in the same case</i> absent some significant change in circumstances.” (<i>Id.</i>) Plaintiff has not offered any authority to establish that an unpublished appellate opinion in another case becomes law of the case in this case. For these reasons, the motion must be denied. The court also notes that multiple upcoming motions are set for August 17, 2026, in this case. The caption pages on the motions still identify N16 as the department in which these motions are being heard. However, as set forth in the April 22, 2026, Minute Order on related cases, all of these motions have been reassigned to Department C27. As such, those motions will be heard in C27. Moving party to give notice.
13	Tennis vs. Comprehensive Manufacturing Services, L.L.C.	TENTATIVE RULING: Plaintiff Jordan Tennis seeks leave to file a first amended complaint that would remove Victory Holdco, LLC as a defendant, add Defendant Amtech Elevator Services (previously Doe 1), and add a cause of action for Strict Products Liability and Products Liability Negligence against Defendant Comprehensive Manufacturing Services, LLC dba Courion. (“CMS”). For the reasons set forth below, the motion is GRANTED. Defendants argue that Plaintiff unreasonably delayed seeking leave to amend. Plaintiff had knowledge of the basis for their new cause of action earlier given that Plaintiff has known that CMS was the seller of elevator parts. Indeed, CMS responded to written discovery, detailing this fact in August 27, 2025, discovery responses. Defendants argue that Defendants will suffer prejudice if the court allows leave to amend because Defendants already have pending motions for summary judgment/summary adjudication and an amended complaint would moot those motions.

Leave to amend should be granted liberally to accomplish substantial justice for both parties. (Code Civ. Proc., § 473, subd. (a); *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 488-489 (“*Hirsa*”).) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend....” (*Morgan v. Sup. Ct.* (1959) 172 Cal.App.2d 527, 530.) Prejudice includes “delay in trial, loss of critical evidence, or added costs of preparation.” (*Solit v. Tokai Bank, Ltd. New York Branch* (1999) 68 Cal.App.4th 1435, 1448.) “The power to permit amendments is interpreted very liberally as long as the plaintiff does not attempt to state facts which give rise to a wholly distinct and different legal obligation against the defendant.” (*Herrera v. Superior Court* (1984) 158 Cal.App.3d 255, 259.) “Allowing the filing of [] an amendment is in furtherance of justice and in keeping with the fundamental policy of our courts that cases should be decided on their merits.” (*Hirsa, supra*, at p.490.) It is “an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.” (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.) “A trial court has broad discretion to allow the filing of amendments to pleadings to conform to proof,” including “after a trial has been concluded” to conform to the proof. (*Nelson v. Gaunt*, 125 Cal. App. 3d 623, 636 (1981)).

Under California Rules of Court Rule 3.1324(a), a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. Under California Rule of Court Rule 3.1324(b), a separate declaration must accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier.

Here, Plaintiff has substantially complied with the procedural requirements for leave to amend. However, the court is hesitant to excuse Plaintiff’s delays in seeking leave until after Defendants filed motions for summary judgment. Indeed, Plaintiff’s “explanation” for not seeking leave earlier does not appear compelling. The court is also not impervious to the prejudice that Defendants face, particularly given that Defendants have already moved for summary judgment and that Plaintiff’s late-filed motion essentially seeks to moot those

		motions. (See <i>Melican v. Regents of Univ. of Calif.</i> (2007) 151 Cal.App.4th 168, 176 (trial court does not abuse its discretion by denying leave to amend when facts were known to plaintiff earlier and because “[i]t would be patently unfair to allow [plaintiff] to defeat [defendant’s] summary judgment motion by allowing them to present a ‘moving target’ unbounded by the pleadings.”). Nevertheless, given the liberal policy of allowing amendments and allowing a party to proceed on the merits, and given that Plaintiff sought leave to amend before the hearing on the motions for summary judgment, the court will grant Plaintiff leave to amend. (See e.g., <i>Laabs v. City of Victorville</i> (2008) 163 Cal.App.4th 1242, 1257 [“[I]f a plaintiff wishes to introduce issues not encompassed in the original pleadings, the plaintiff must seek leave to amend the complaint at or prior to the hearing on the motion for summary judgment.”].) Plaintiff is ordered to file the First Amended Complaint attached as Exhibit #1 to the Declaration of Timothy Peabody Jr. within 7-days of the hearing on this matter. Plaintiff to give notice.
14	Colligan vs. So-Cal Boys Restaurant Group Inc.	TENTATIVE RULING: <u>Motion to Quash</u> Specially Appearing Doe Defendant Kenneth Charles Koch (“Koch”) moves to quash the service of summons on Koch. For the following reasons, the motion is GRANTED. 1) <u>Legal Standard</u> It is common practice to include fictitious names as defendants to allow for flexibility in pleading and service. Once the defendant’s true name has been discovered, however, the complaint “must be amended accordingly.” (Code Civ. Proc. § 474.) Section 474 provides: When the plaintiff is ignorant of the name of a defendant, he must state that fact in the complaint, or the affidavit if the action is commenced by affidavit, and such defendant may be designated in any pleading or proceeding by any name, and when his true name is discovered, the pleading or proceeding must be amended accordingly; provided, that no default or default judgment shall be entered against a defendant so designated, unless it appears that the copy of the summons or

other process, or, if there be no summons or process, the copy of the first pleading or notice served upon such defendant bore on the face thereof a notice stating in substance: "To the person served: You are hereby served in the within action (or proceedings) as (or on behalf of) the person sued under the fictitious name of (designating it)." The certificate or affidavit of service must state the fictitious name under which such defendant was served and the fact that notice of identity was given by endorsement upon the document served as required by this section. The foregoing requirements for entry of a default or default judgment shall be applicable only as to fictitious names designated pursuant to this section and not in the event the plaintiff has sued the defendant by an erroneous name and shall not be applicable to entry of a default or default judgment based upon service, in the manner otherwise provided by law, of an amended pleading, process or notice designating defendant by his true name.

To defeat the amendment, the burden is on defendant to prove plaintiff's earlier awareness of defendant's identity and facts creating its liability. (*See Fara Estates Homeowners Ass'n v. Fara Estates, Ltd.* (9th Cir. 1998) 134 F.3d 377, 377 (applying Calif. law); *Breceda v. Gamsby* (1968) 267 Cal.App.2d 167, 179.)

Where a complaint is amended after the statute of limitations has run to identify a fictitiously-named defendant, and to assert a cause of action against that defendant not included in the original complaint, the amended complaint will be given relation back effect, so as to avoid the statute of limitations, provided:

— the original complaint stated a valid cause of action against the now-identified "Doe" defendant; and

— plaintiff was "genuinely ignorant" of the defendant's identity or the facts rendering defendant liable when the original complaint was filed; and

— the amended complaint, identifying the defendant, is based on the "same general set of facts" as the original and refers to the "same accident and same injuries."

(*Austin v. Massachusetts Bonding & Ins. Co.* (1961) 56 Cal.2d 596, 600-601.)

Serving someone as a "Doe" defendant after the statute of limitations has run may seriously impair his or her ability to defend. Hence,

relation back effect will be given only when plaintiff was proceeding in good faith; i.e., only where plaintiff was genuinely ignorant of that person's identity or liability when the action was commenced.

(*Miller v. Thomas* (1981) 121 Cal.App.3d 440, 445-446; *McClatchy v. Coblenz, Patch, Duffy & Bass, LLP* (2016) 247 Cal.App.4th 368, 371-372.)

Note, this is not a "should have discovered" standard, but rather actual knowledge. "(T)he relevant inquiry when the plaintiff seeks to substitute a real defendant for one sued fictitiously is what facts the plaintiff actually knew at the time the original complaint was filed." (*General Motors Corp. v. Sup.Ct. (Jeffrey)* (1996) 48 Cal.App.4th 580, 588.)

If the actual knowledge test (above) is satisfied, it is irrelevant that plaintiff was negligent or failed to exercise reasonable diligence in not having discovered defendant's identity or liability earlier: "(A) plaintiff will not be refused the right to use a Doe pleading even where the plaintiff's lack of actual knowledge is attributable to plaintiff's own negligence." [*Grinnell Fire Protection System Co. v. American Sav. & Loan Ass'n* (1986) 183 Cal.App.3d 352, 359 (emphasis added); see *Fuller v. Tucker* (2000) 84 Cal.App.4th 1163, 1170.]

Similarly, the fact that there were means by which plaintiff could have determined the identity or capacity of a "Doe" defendant when the complaint was filed is irrelevant to whether plaintiff was "ignorant" of these matters. [*Fuller v. Tucker, supra*, 84 CA4th at 1170; *General Motors Corp. v. Sup.Ct. (Jeffrey)* (1996) 48 CA4th 580, 596—"section 474 does not impose upon the plaintiff a duty to go in search of facts she does not actually have at the time she files her original pleading"].

But, whether plaintiff was genuinely "ignorant" or had "actual knowledge" of the "Doe" defendant's identity or liability when the complaint was filed is determined by a good faith test. (*Woo v. Sup.Ct. (Zarabi)* (1999) 75 Cal.App.4th 169, 177 [genuine ignorance required].)

Further, the court has discretion to deny leave to amend to name a person as a "Doe" defendant where there is evidence of laches—i.e., unreasonable delay by plaintiff in seeking leave to amend *after discovering defendants identity* causing specific prejudice to the defendant. (See *Barrows v. American Motors Corp.* (1983) 144 CA3d 1, 8.) Thus, leave to amend may be denied for unreasonable delay after plaintiff ascertains a "Doe" defendant's identity resulting

in prejudice to the defendant. (*A.N. v. County of Los Angeles* (2009) 171 Cal.App.4th 1058, 1068—”Doe” amendments filed on eve of trial quashed because plaintiff knew defendants’ identities more than 2 years earlier and it would be difficult for defendants to prepare for trial in such short order.)

2) Procedure

Code Civ. Proc. § 474 does not specify how a “Doe” amendment may be challenged. Assuming plaintiff’s pleadings comply with Section 474, defendant may challenge a “Doe” amendment through various proceedings, depending on whether the challenge involves an improperly-named “Doe” defendant or lack of diligence in serving a fictitiously-named defendant:

(1) Improperly-named “Doe” defendant: When a defendant is improperly named by a fictitious name (e.g., defendant can show plaintiff knew defendant’s name and the facts supporting the cause of action against him or her), the affirmative defense that the statute of limitations had run when defendant was named may raise a fact issue. (*See McOwen v. Grossman* (2007) 153 Cal.App.4th 937, 944-948 (finding triable issue of fact in a medical malpractice action as to whether plaintiff knew of the theory under which defendant could be liable).)

(2) Lack of diligence in serving fictitiously-named defendant: On the other hand, if the defendant is properly named as a “Doe” but claims lack of diligence in serving him or her, a pretrial, evidence based, motion would be the appropriate procedure to challenge plaintiff’s delay in naming the defendant. [*See A.N. v. County of Los Angeles* (2009) 171 CA4th 1058, 1067.]

But other cases have permitted these motions as motions to quash service. (*A.N., a Minor v. Cty. of Los Angeles* (2009) 171 Cal. App. 4th 1058, 1063.) This motion is a motion to quash.

3) Analysis

Plaintiffs named Kenneth Charles Koch (“Koch”) as Doe Defendant 2 on February 26, 2026. (ROA 210.) Koch contends that he may not be added as a Doe Defendant because Plaintiff waited too long to name him as a Doe Defendant, after fact discovery was completed, experts were designated, and expert discovery commenced.

Koch has met his burden to show that Plaintiffs unreasonably delayed in seeking the amendment.

Koch provides evidence that Plaintiffs have known his identity since at least June 17, 2025, when Plaintiffs took Koch's deposition. (Rasmussen Dec., ¶ 9.) Koch also verified Defendant Viking's discovery responses on April 4, 2024. (Rasmussen Dec., Ex. 2.)

In an email exchange in mid-August 2025, Plaintiffs' counsel sent an email to Viking's counsel, asking Viking's counsel if he would accept service on behalf of Koch because he was a "negligent manager/owner." (Rasmussen Reply Dec., Ex. 1.)

On November 12, 2025, the parties submitted a joint stipulation to continue the trial that was then set for December 1, 2025. (ROA 181.) In that stipulation, the parties acknowledged that fact discovery had closed but requested a trial continuance to February 2026. (Ibid.) In early 2026, trial was set for February 23, 2026, but on February 18, 2026, trial was continued to September 21, 2026. (ROA 194; 203.) Plaintiff did not seek to add Koch as a Doe Defendant until February 26, 2026. (ROA 210.)

Plaintiffs claim that, while they were aware of Koch's identity by 2025, they did not have knowledge of Koch's potential personal liability until February 13, 2026, when the parties conducted the deposition of security expert R. Bruce Ramm. (Gansen Dec., ¶ 2 and Ex. A.) However, Ramm is Plaintiffs' own expert. Further, Ramm's deposition testimony attached to Plaintiffs' counsel's declaration does not support Plaintiffs' contention that "Koch failed to perform mandatory credential verification and had knowledge the guards at Roscoe's were not credentialed while choosing to send them to work that night anyway." The deposition testimony provided with the declaration mentions Koch on only one occasion, and that occasion relates to the issue of how the security guards dressed. (Gansen Dec., Ex. A.)

Moving Defendant also shows specific prejudice due to the delay. Discovery is now closed in this action, giving Moving Defendant no opportunity to take part in discovery prior to trial. Plaintiffs contend that Koch cannot claim surprise because he is the owner of Defendant Viking and thus has been "involved" in defense strategy. While that may be true from a corporate perspective, Plaintiffs provide no evidence that Plaintiffs have had any opportunity to conduct discovery with respect to a claim for individual liability against Koch.

Thus, the court grants the motion to quash service of summons on Koch.

		In the conclusion section of his motion, Koch states: In addition, for the reasons articulated above, the Court has the power, sua sponte, in the interests of justice to strike the untimely filings of Doe Amendments 2, 3, 4, 5, 6, 7, 11 and 12. Except for James Frank and Jeff Hayden, whose motions are set for August 26, 2026, these Doe Defendants have not filed their own motion to quash. That is, no party has produced any evidence or argument showing why those Doe Amendments should be quashed. The Court will not sua sponte quash a Doe Amendment at this juncture. Koch shall give notice of this ruling.
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